

9:00 A.M.

Calendar Line # 1

Case Name City of San Jose vs Mua Tran

Case No. 26CV489278

Order to Show Cause: Preliminary Injunction

Before the Court is this OSC for defendant to show cause as to why a preliminary injunction should not issue regarding 1195 Piedmont Road, San Jose, California 95132 and why a receiver should not be appointed as requested by the City.

I. BACKGROUND

This housing violation and public nuisance case stems from a March 13, 2026 Complaint filed by the City of San Jose (“City”) against Defendant Mua Tran (“Tran”) regarding dilapidated and unlicensed structures on the residence located at 1195 Piedmont Road, San Jose, California 95132 (“Subject Property”).

On May 6, 2026, the City filed a preliminary injunction against the Defendant and appointment of a receiver regarding the Subject Property. The motion was accompanied by a proof of service indicating mail service to Defendant Tran.

Per California Code of Civil Procedure section 1005(b) opposition papers were due on August 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the nonresponding party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On August 13, 2026, the City has moved for a basic entry of default on which was entered by the clerk on that day.

The Court has carefully reviewed the City’s notice of preliminary injunction (totaling 3 pages); memorandum of points and authorities (totaling 10 pages); Declaration of George Gange and attached Exhibit A (totaling 4 pages); Declaration of Hanna Odekirk and attached Exhibit A and Proposed Order of the Preliminary Injunction (totaling 8 pages); Declaration of Manuel Duarte and attached Exhibits A-G (totaling 65 pages); Declaration of Richardson Griswold and attached Exhibits A-B (totaling 42 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

A. PRELIMINARY INJUNCTION

The purpose of a preliminary injunction is to preserve the *status quo* pending final resolution upon a trial. (*Scaringe v. J.C.C. Enterprises, Inc.*, (1988) 205 Cal.App.3d 1536; *Grothe v. Cortlandt Corp.*, (1992) 11 Cal.App.4th 1313, 1316; *Major v. Miraverde Homeowners Assn.*, (1992) 7 Cal.App.4th 618, 623). The *status quo* has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court*, (1916) 172 Cal. 80, 87; *14859 Moorpark Homeowner’s Assn. v. VRT Corp.*, (1998) 63 Cal.App.4th 1396. 1402).

In determining whether to issue a preliminary injunction, a court must weigh two interrelated factors: (1) the reasonable probability that the plaintiff will ultimately prevail on the merits at trial (Code of Civ. Proc. §526(a)(1)), and (2) the relative interim harm and “irreparable harm” to the parties from issuance or noninsurance of the injunction. (*Id.*, at (a)(2); *14859 Moorpark Homeowner’s Assn.*, *supra*, 63 Cal.App.4th at 1402; *Pillsbury, Madison & Sutro v. Schectman*, (1997) 55 Cal.App.4th 1279, 1283; *Davenport v. Blue Cross of California*, (1997) 52 Cal.App.4th 435, 446). The court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.”

(*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678). Accordingly, a preliminary injunction may not issue without some showing of potential entitlement to such relief. (*Doe v. Wilson*, (1997) 57 Cal.App.4th 296, 304). The decision to grant a preliminary injunction generally lies within the sound discretion of the trial court and will not be disturbed on appeal absent an abuse of discretion. (*Thornton v. Carlson*, (1992) 4 Cal.App.4th 1249, 1255).

Injunctive relief may be granted based on a verified complaint only if it contains sufficient evidentiary, not ultimate, facts. (Code of Civ. Proc., §527(a)). For this reason, a pleading alone rarely suffices. (Weil & Brown, California Procedure Before Trial, 9:579, 9(II)-21 (The Rutter Group 2007)). The burden of proof is on the plaintiff as moving party. (*O'Connell v. Superior Court*, (2006) 141 Cal.App.4th 1452, 1481).

B. APPOINTMENT OF RECIEVER

Purasant to Code of Civil Procedure section 564, a receiver may be appointed for limited reasons, relevant here is subsection(b) subdivision (9), in all other cases where necessary to preserve the property or rights of any party. (Code Civ. Proc., § 564(b)(9)).

“[A]ppointment of a receiver is a drastic remedy to be employed only in exceptional circumstances.” (*City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744). “[T]he availability of other remedies does not, in and of itself, preclude the use of a receivership. [Citation.] Rather, a trial court must consider the availability and efficacy of other remedies in determining whether to employ the extraordinary remedy of a receivership. [Citation.]” (*Gold v. Gold* (2003) 114 Cal.App.4th 791, 807). “The appointment of a receiver rests within the discretion of the trial court. [Citations.]” (*Id.* pp. 807–808). “However, such power is not entirely uncontrolled and must be exercised with due regard to the facts presented in each particular case.” (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873). “[T]he power should be sparingly exercised, and never used in a doubtful case . . .”. (*Koshaba v. Koshaba* (1942) 56 Cal.App.2d 302, 314).

C. BOND

A preliminary injunction ordinarily cannot take effect unless and until the plaintiff provides an undertaking for damages which the enjoined defendant may sustain by reason of the injunction if the court finally decides that the plaintiff was not entitled to the injunction. (Code of Civ. Proc. §529(a); *City of South San Francisco v. Cypress Lawn Cemetery Assn.*, (1992) 11 Cal.App.4th 916, 920).

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist*, (1991) 235 Cal.App.3d 1, 15). The attorney’s fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.*, at 15-16). While *Abba* reasoned that the plaintiff’s likelihood of prevailing is irrelevant to setting the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (*Oiye v. Fox*, (2012) 211 Cal.App.4th 1036, 1062).

III. ANALYSIS

A. PRELIMINARY INJUNCTION

Here, the City seeks a preliminary injunction until trial on the merits in this matter. The Subject Property has a protracted history of blight and nuisance violations under San Jose Municipal Code (“SJMC”) sections 1.13.050 and 17.72.020, California Civil Code section 3480, California Health and Safety Code section 17920.3. (Plaintiff’s memorandum and authorities (“MPA”), at p. 1-2). Plaintiff alleges that the Subject Property is a public nuisance per se. (Complaint). Specifically, the City alleges that Defendant Tran has allowed the Subject Property “. . . to fall into disrepair, blight, and has rented out space inside the main dwelling and the unpermitted addition to the main

dwelling which are both in such dilapidated condition as to be substandard housing.” (MPA, at p. 3). Defendant Tran constructed a large addition to the Subject Property without permits in violation of SJMC 24.02.100 (Declaration of Duarte ¶¶ 4-6).

The City set forth a longstanding record of violations on the Subject Property, including abatement warrants and multiple citations for over twenty-years. (MPA, at p. 3-5). The defendant’s failure to rectify the nuisance despite given notice has been an “enormous drain[] on the City’s resources.” (Declaration of Duarte ¶ 18). Violations include the installation of an unpermitted structure that is dilapidated with deteriorating siding and other lumber, exposed insulation, and a deteriorating roof. (*Id.*, ¶¶ 7). The unpermitted structure extends to the rear of the property lines and abuts near the neighbor’s property line. (*Id.*). Said unpermitted structure serves as the dwelling of multiple tenants. (*Id.*, at ¶¶ 8-12). The interior of the main structure of the Subject Property has also been modified to accommodate multiple tenants, which violates the single-family use zoning. (*Id.*, ¶¶ 7-11). The structure is in significant disrepair with noticeably shifting foundation and a cascading roof flowing towards the common fence shared with the neighboring property. (Declaration of Ganges, ¶¶ 2-3). Neighbor George Ganges attests that the Subject Property also suffers from a bee infestation and debris is pushed onto the fence of the neighboring property line. (*Id.*, Exhibit A). Mr. Ganges also reports debris, overgrown vegetation, and a foul odor that emanates from the Subject Property create concerns of a fire hazard, vermin and other vector infestation, and overall health and safety concerns. (*Id.*, ¶4). Code Enforcement also observed signs installed on the front yard, including a sign stating, “No Trespassing, violators will be shot, survivors will be shot again, due to price increase in ammo do not expect a warning shot, there is nothing here worth being shot for.” (Duarte Decl. ¶ 8). Code Enforcement obtained a warrant to inspect the Subject Property and executed the warrant on December 13, 2022 and cited a number of violations. (MPA, p. 4; Declaration of Duarte 9-10). On April 27, 2023, Code Enforcement mail a Compliance Order citing the violations: SJMC sections 17.20.900 (Substandard Housing), 17.20.900(L) (Inadequate Exits), and 24.02.100 (Unpermitted Building) and specific compliance actions and deadlines, as well as the possible imposition of \$2,500.00 daily penalties as well as other fees and costs. (Declaration of Duarte ¶ 11; Exhibit C). From August 4, 2023 to December 9, 2024, Code Enforcement made multiple attempts to contact Defendant Tran, which was unsuccessful. (*Id.*, ¶12). Code Enforcement obtained another Inspection Warrant of the Subject Property on January 27, 2025 with San Jose Police Department on civil standby. (*Id.*, ¶14). The Subject Property was in the same condition as the December 2022 inspection noted above, with unpermitted construction, dilapidation throughout, exposed electric wiring, insufficient egress, and indications of hoarding. (*Id.*). On March 27, 2025, a second noticed Appeals Hearing Board (“AHB”) hearing occurred and found the defendant failed to comply with the April 27, 2023 orders. This Order was mailed to the defendant along with outstanding administrative costs and feels. On June 26, 2025, the defendant failed to take any remedial measure or pay fees and penalties. (*Id.*, ¶¶15-16; Exhibit F). An additional letter was sent to the defendant. (*Id.*).

On March 13, 2025, the City filed the Complaint on this matter alleging violations on the Subject Property under SJMC sections 1.13.040, 17.72.020, 17.20.900, 20.30.400, 24.01.130, and California Health and Safety Code section 17920.3. (Complaint; Declaration of Odekirk 3-4). Notice was given to Defendant Tran requesting contact to correct the violations within seven days, as well as failure to comply could result in the City seeking injunctive relief and appointment of a receiver. (*Id.*). The defendant has been unwilling or unable to abate the nuisance conditions on the Subject Property, which led to the City’s issuance of this injunction to enjoin activity and protect the health and safety of the residents of the Subject Property, and the community surrounding the Subject Property. (*Id.*). Specifically, the main structure and unpermitted addition are poorly constructed and maintained that they constitute substandard housing and endanger the health, safety, welfare of the tenants and surrounding neighborhood. (Declaration of Duarte, ¶ 18). Additionally, overgrown vegetation on the subject property creates a health and safety risk for fires and harboring vermin, which creates a nuisance. (*Id.*).

The City asserts that a preliminary injunction is warranted as the City has a likelihood of success on the merits and balancing the hardships way in the favor of the City. The City has established a long history and continued efforts to seek corrective measures to multiple violations cited on the Subject Property, including but not limited to SJMC sections 17.20.900 (Substandard Housing), 17.20.900(L) (Inadequate Exits), and 24.02.100 (Unpermitted Building). The Subject Property is a nuisance per se and endangers the health, safety, and welfare of the multiple tenants, which also violates the sing-occupancy zoning for the area, as well as the surrounding neighbors.

The City further asserts that there will be irreparable harm if no injunction issues given that the Subject Property creates a public nuisance. The City avers that Defendant Tran has no legitimate legal interested in renting out unpermitted, dilapidated, and uninhabitable housing to tenants. (MPA, p. 9). The City states that Defendant Tran is not entitled to benefit from renting space that he knows is dangerous and substandard. The City also argues that removal of the nuisance will increase the value of the property. (*Id.*).

The City has shown a reasonable likelihood of success, and without a preliminary injunction would be subject to irreparable harm, due to the risk of health, safety and welfare of tenants who are residing in an unpermitted and dilapidated structure, and potential fire hazard and vermin infestation due to over vegetation of the Subject Property.

B. RECEIVERSHIP

The City seeks appointment of a receiver to abate the nuisance on the Subject Property under Code of Civil Procedure 564, Business and Professions Code § 17203, and Health and Safety Code § 17980.7(c) (MPA, at p. 2). Plaintiff asserts that the building is in a condition that substantially endangers the health and safety of residences and a receiver can assist the lawful tenants. The City avers that a receiver would ensure the lawful tenants of the Subject Property and protected from further harm due to the substandard living conditions. The City cites its twenty year history of inspecting and issuing administrative citations on the Subject Property and the public nuisance of the property as a need for appointment of a receiver.

Under Rule of Court, rule 3.1177, the City seeks appointment of Richardson Griswold as an expert in the field. (MPA, at o. 10). The Court has reviewed the Declaration of Richardson Griswold and attached Exhibits A-B, including his curriculum vitae (Exhibit A) setting forth his qualifications as a court-appointed receiver to repair and remedy he existing Health and Safey Code violations and other Court violations. (Declaration of Griswold ¶ 8).Mr. Griswold is not a party of the action and do not represent any parties to the action. There is no contract or agreement between Mr. Griswold and the parties or any interested parties in this matter. (*Id.*, at ¶ 9).

Plaintiff City has established that it is entitled to a receiver under Code of Civil Procedure section 564(b)(9). The Court concludes that Plaintiff has demonstrated that a receiver is necessary to abate the nuisance and protect the health and safety of lawful tenants and neighbors of the Subject Property.

C. BOND

Here, the City does not set forth a bond amount. However, the Court must require a bond. The purpose of the bond is to cover the defendant's damages from an improvidently issued injunction. (Code of Civ. Proc., § 529(a)).

The Court finds that a bond in the amount of \$10,000.00 will be a sufficient undertaking to protect the defendant from any potential damages as required by Code Civil Procedure section 529.

IV. CONCLUSION

Based on the foregoing, the unopposed motion, the City has shown a reasonable likelihood of success, and without a preliminary injunction, would be subject to irreparable harm of health and safety to tenants and neighbors of the Subject Property. Therefore, the motion for a preliminary injunction is GRANTED. The City proposed the

injunction to include Orders that were attached to the Declaration of Oderkirk and the court GRANTS the preliminary injunction and ORDERS Defendant Tran as follows:

- (a) Contact the City of San Jose, City Attorney's Office to discuss the defendant's plans to correct the violations within seven (7) days of the date of this Order;
- (b) Repair or abate all violations of the law on the Subject Property including San Jose Municipal Code violations sections: (1) 1.13.040 (Public Nuisance Prohibited); (2) 1.13.050(A)(1), (A)(3) (Public Nuisance Defined); (3) 17.72.020 (Public Nuisance); (4) 17.20.900 (Substandard Housing); (5) 17.20.900 L (Substandard Housing – Inadequate Exits); (6) 20.30.010 B (Residential Zoning Districts); (7) 20.30.400 (Residential Zoning Districts – Setback Regulations); (8) 9.10.410 (General Requirements, Waste); (9) 9.10.540 (Dangerous Accumulation); (10) 24.01.130 (Compliance with Titled Provisions Required); (11) 24.02.100 (Permits Required); (12) 17920.3(a)(14) (General dilapidation or improper maintenance); (13) Health and Safety Code section 17920.3(c) (Nuisance); and (14) Health and Safety Code section 17920.3(l) (Building or portion thereof that is unsafe due to inadequate exits);
- (c) Do not retaliate against lessees of the Subject Property as specified in California Civil Code section 1942.5;
- (d) Do not claim any tax deduction for interest, taxes, depreciation, or amortization paid or incurred for the Subject Property in this taxable year; and
- (e) Pay relocation benefits to any tenants displaced from the Subject Property as a result of this Notice and Order.

The preliminary injunction once authorized will remain in effect until entry of judgment or further order of this Court.

The motion to appoint a receivership is GRANTED. The City is to include the appointment of Richardson Griswold as the receiver in the proposed preliminary injunction.

Plaintiff shall deposit a bond of \$10,000.00 within seven (7) days of this Order.

The Court will prepare the formal Order.

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Calendar Line # 2
Case Name Gianni Amato vs Plan 51 Homeowners Association et al
Case No. 26CV493956
Hearing: OSC TRO/ Preliminary Injunction
<u>I. BACKGROUND</u> On June 11, 2026, Plaintiff Gianni Amato (“Amato”) filed a First Amended Complaint for damages, injunctive relief and declaratory relief, including: breach of CC&R under Civil Code section 4775, breach of fiduciary duty, negligence and negligence per se, retaliation, tortious inference, fraudulent misrepresentation, fraudulent concealment, records violations, unfair business practice, intentional infliction of emotional distress, negligent infliction of emotional distress, FEHA, Unruh Civil Rights Act, private nuisance, unjust enrichment, declaratory and injunctive relief, conversation, negligent hiring, retention, and supervision, Federal Fair Housing Act, and injury by unlicensed services. On June 25, 2026, Plaintiff Amato filed an ex parte application for a temporary restraining order (“TRO”) against Defendants Plait 51 Homeowners Association, Seabreeze Management Company, Inc., Lorenzo Faderogao, and Shelreese Elieh (collectively “Defendants”). The Honorable Mark Flanagan denied the TRO on the basis that the plaintiff failed to make an adequate showing o irreparable harm. (June 29, 2026 Order). Judge Flanagan granted an order to show cause hearing (“OSC”) by the defendants as to why a preliminary injunction should not issue ordering, restraining, and enjoining the defendants and their employees, agents, or persona, until entry of judgment or further order of the court as to the six requests made by the plaintiff. The six request included: 1. From interfering with, contracting, instructing, directing, or communicating with Silicon Valley Builders, Inc., (CSLB license No. 113389), or any successor licensed contractor retained by Plaintiff, for the purpose of causing, requesting, inducing, or threatening any such contractor to cease, suspend, delay, decline, or refrain from performing work at Unit 2119; 2. From requiring, conditioning, treating, or asserting Architectural Review Committee approval or any other architectural or design approval as a precondition to Plaintiff’s performance of (a) emergency mitigation and mold-remediation work, and (b) the health and safety and code-mandated repairs required by City of San Jose Notice of Violation No. 202604261, including any related permit, plan-submittal, or correction requirement; 3. From assessing, imposing, posting, charging, or collecting any further late charge, “reminder notice” fee, delinquency fee, delinquency interest, fine, penalty, administrative fee, or other charge against Plaintiff’s account (Account No. 095100184764) or against Unit 2119, and from undertaking any other collection activity with respect to the disputed charges, during pendency of this action; 4. From recording, or causing to be recorded, any assessment lien, notice of delinquent assessment, or any other document evidencing, perfecting, or giving notice of such a lien against Unit 2119, and from taking any further step in furtherance of the pre-lien process initiated by the June 8, 2026 “Notice of Intent to Lien” and any related Civil Code section 5660 notice, based upon the disputed charges identified in the Declaration of Gianni Amato; 5. From issuing any further cease-and-desist letter, demand letter, or threat of enforcement to Plaintiff or any contractor retained by Plaintiff concerning the work required by Notice of Violation 202604261, or the emergency mitigation of Unit 2119, during the pendency of this action; and